



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 22 judgments on Tuesday 14 January 2020 and 76 judgments and / or decisions on Thursday 16 January 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 14 January 2020

[Lazarević v. Bosnia and Herzegovina \(application no. 29422/17\)](#)

The applicant, Slobodan Lazarević, is a national of Bosnia and Herzegovina who was born in 1960 and lives in Doboj (Bosnia and Herzegovina).

The case concerns the applicant's complaint about a set of labour proceedings following his dismissal from a public railway company.

Mr Lazarević was dismissed in 2012 and filed a claim against the railway company for redundancy pay, bonuses, meal allowances and pension contributions. The first-instance court granted his claim for redundancy pay, but rejected the other claims because of his former employer's poor financial situation.

The second-instance court endorsed this decision and the Supreme Court then dismissed his appeal on points of law, without examining it on the merits. Ultimately, in 2016, Mr Lazarević lodged a constitutional appeal, arguing that domestic law clearly provided that employees were entitled to certain work-related benefits and that the decisions in his case had gone against recent domestic practice. The Constitutional Court dismissed, however, his appeal as manifestly ill-founded.

Relying on Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights, Mr Lazarević alleges that the judgments in his case were unfair as they were contrary to domestic legislation and the case-law of the highest courts.

[Beizaras and Levickas v. Lithuania \(no. 41288/15\)](#)

The applicants, Pijus Beizaras and Magirdas Levickas, are Lithuanian nationals who were born in 1996 and 1995, respectively. They live in Kaunas and Panevėžys (Lithuania).

The case raises questions about the State's responsibility to protect individuals from homophobic hate speech.

The applicants are in a same-sex relationship. In December 2014 Mr Beizaras posted a photograph of them kissing on his Facebook page.

The photograph went "viral", receiving hundreds of comments in Lithuania. The comments mostly included calls for the applicants to be "castrated", "killed", "exterminated" and "burned" because of their homosexuality.

The applicants turned to a non-governmental organisation, the National Lesbian, Gay, Bisexual and Transgender Rights Association, of which they are both members, asking it to complain to the prosecuting authorities and to request that they initiate criminal proceedings for incitement to hatred and violence against homosexuals.

The prosecutor decided, however, not to initiate a pre-trial investigation regarding the complaint. He considered that the authors of the comments had merely been “expressing their opinion” and that, although they had reacted “unethically”, their behaviour did not warrant prosecution.

The domestic courts then fully endorsed the prosecutor’s stance in a final ruling of February 2015, adding that the applicants’ behaviour had been “eccentric” and deliberately provocative. In particular, the applicants could have foreseen that posting a picture of two men kissing would not contribute to social cohesion and the promotion of tolerance in Lithuania, a country where “traditional family values were very much appreciated”. It would have been preferable for the applicants to share their picture with “like-minded people”, especially since Facebook gave the possibility to restrict access to just friends.

Relying on Article 14 (prohibition of discrimination), taken in conjunction with Article 8 (right to respect for private and family life) of the European Convention, the applicants allege that they were discriminated against on the grounds of sexual orientation because of the authorities’ refusal to launch a pre-trial investigation into the hate comments on Mr Beizaras’s Facebook page.

They also argue that the refusal left them with no possibility of legal redress, in breach of Article 13 (right to an effective remedy).

[Rinau v. Lithuania \(no. 10926/09\)](#)

The applicants, Michael Rinau, a German national, and his daughter Luisa, a Lithuanian and German national, were born in 1969 and 2005 respectively and live in Bergfelde (Germany).

The case concerns their complaint about the Lithuanian authorities’ handling of Mr Rinau’s case for the return of his daughter to his care in Germany.

In 2006 Mr Rinau’s former wife, I.R., a Lithuanian national, took their daughter to her homeland for a holiday, but did not return after two weeks as promised. Mr Rinau applied for and obtained German court orders to give him provisional sole responsibility and to return the child to him. In 2007 the German courts also granted the couple a divorce and gave Mr Rinau permanent custody.

In October 2006 he applied to the Lithuanian courts to have the child returned, relying on the Hague Convention on the Civil Aspects of International Child Abduction and the European Union’s Brussels II *bis* Regulation on the recognition and enforcement of judgments in matrimonial matters and matters of parental responsibility. After being refused at first instance, he won such an order on appeal in March 2007 in a decision which was not amenable to further appeal.

The case attracted much comment by the Lithuanian media and politicians, who were critical of the idea of returning the child to Germany and who alleged that the authorities were failing to protect the rights of a Lithuanian citizen, the mother.

The case involved several sets of proceedings in Lithuania whereby the mother and the Prosecutor General aimed in particular to reopen the proceedings on the order to return the child.

In October 2007 the President of the Supreme Court adopted a ruling suspending the execution of the Court of Appeal decision of March 2007.

In April 2008 the Supreme Court also made a request for a preliminary ruling to the Court of Justice of the European Union (ECJ) on various aspects of the Brussels II *bis* Regulation. That Court essentially subsequently found that if the German courts had issued a valid certificate for the child’s return, as they had done in 2007, then under the Regulation the Lithuanian courts had to fulfil it.

In August 2008 the Supreme Court rejected requests by the Prosecutor General and I.R. for a reopening of the civil proceedings and dismissed an appeal on points of law by I.R., referring to the ECJ preliminary ruling in both decisions.

Amid further delays in a handover, Mr Rinau in October 2008 took his daughter from a child-care centre in Lithuania and travelled to Latvia, being briefly detained at Riga airport before being allowed to proceed back to Germany. He initially faced criminal prosecution for abduction in Lithuania but prosecutors terminated the case in November 2009.

Relying on Article 8 (right to respect for family life), the applicants complain about the way the Lithuanian authorities handled the proceedings for the second applicant's return to Germany. Referring to Article 6 § 1 (right to a fair trial), they also complain that the case was politicised.

[Stephens v. Malta \(no. 35989/14\)](#)

The applicant, Mark Charles Kenneth Stephens, is a British national who was born in 1963 and is detained in Paola (Malta).

The case concerns his allegation that his trial on drug trafficking charges was unfair.

Mr Stephens was arrested in Spain in 2004 on suspicion of drug trafficking and subsequently extradited to Malta after a certain G.R.E., whom the police had stopped at Malta International Airport with cocaine and ecstasy in his bag, had named him as having given him the drugs to carry. G.R.E. later confirmed his statement on oath before a magistrate.

During the trial, however, G.R.E. changed his statement, saying that the applicant was not the "Mark Stephens" he knew.

Mr Stephens was found guilty in November 2008 of dealing illegally in cocaine and ecstasy pills and sentenced to 25 years' imprisonment. His conviction was based on G.R.E.'s pre-trial statements.

His appeal to the Criminal Court and his constitutional redress proceedings were both unsuccessful, in 2010 and 2013 respectively.

Throughout the proceedings he raised the issue of the admissibility of G.R.E.'s pre-trial statements, without success. In particular, the courts found that the statements were corroborated by witness testimony, including the applicant himself and one of his friends, who had confirmed that he had previously picked up G.R.E. from the airport. The courts also found that the allegation that the first-instance judge had failed to direct the jury to treat the evidence with caution was not made out.

Relying in particular on Article 6 § 1 (right to a fair trial), Mr Stephens alleges that his trial was unfair because G.R.E.'s pre-trial statements had been made without the assistance of a lawyer, when he had felt pressured into cooperating and was suffering from withdrawal symptoms.

[Soares Campos v. Portugal \(no. 30878/16\)](#)

The applicant, José Carlos Soares Campos, is a Portuguese national who was born in 1971 and lives in Lisbon.

The case concerns the death of Mr Soares Campos's son, who was swept out to sea from a beach while taking part in a gathering linked to *Praxe* (a student tradition that includes hazing rituals).

The incident occurred during the night of 14 December 2013 on the beach at Meco, 5.2 km from the house where Mr Soares Campos's son (Tiago Campos) was staying with six other students who were participating in the ritual as part of an annual gathering. The students were caught unawares and were swept out to sea by a large wave. One of them managed to get back to the beach and survived. He was found suffering from hypothermia and was taken to hospital.

Tiago Campos's body was found on the morning of 15 December 2013. He was 21 years old and a student at Lusófona University (*Universidade Lusófona de Humanidades e Tecnologias*), a private university in Lisbon.

Relying on Article 2 (right to life), Mr Soares Campos alleges that his son's death resulted from the lack of a legal framework regulating hazing activities at Portuguese universities. He also complains that no effective investigation was conducted into the circumstances of his son's death.

[D and Others v. Romania \(no. 75953/16\)](#)

The applicants are D, an Iraqi national who was born in 1975, and his former wife and their three children, Romanian nationals who were born in 1980, 2000, 2004 and 2007 respectively. They live in Bucharest.

The case concerns the order made for D's expulsion to Iraq following his conviction in Romania for terrorism offences, and the potential impact of his expulsion on, among other things, the private and family life of the five applicants.

Relying on Articles 2 (right to life), 3 (prohibition of torture and inhuman or degrading treatment), 6 (right to a fair trial), 8 (right to respect for private and family life) and 13 (right to an effective remedy), the applicants allege that D would face the death penalty and ill-treatment if he were expelled to Iraq, and that they would all be subjected to unjustified interference with their right to respect for their private and family life. They also contend that the criminal proceedings leading to the order for D's expulsion were unfair and complain of the lack of an effective remedy by which to obtain an assessment of the risks facing him in the event of his expulsion.

[Khodorkovskiy and Lebedev v. Russia \(no. 2\) \(nos. 51111/07 and 42757/07\)](#)

The case concerns the second trial of two former Yukos oil company executives.

The applicants are Mikhail Borisovich Khodorkovskiy and Platon Leonidovich Lebedev, Russian nationals born in 1963 and 1956 respectively.

After being convicted of tax evasion in 2005 and sent to penal colonies, Mr Khodorkovskiy and Mr Lebedev, former senior executives at the Yukos oil company, faced fresh criminal charges in 2009. A new trial began in March 2009 and ended with their conviction for a second time in December 2010 for the misappropriation or embezzlement of oil and for laundering illicitly gained profits.

During the trial, when the applicants were held in glassed-in boxes, the judge refused to call several witnesses for the defence and rejected requests for finance and oil market specialists to come and testify in the applicants' favour on the expert reports which had been part of the prosecution case.

On appeal, the trial court's verdict was upheld but the applicants' sentence was reduced to 13 years' imprisonment from 14. The appeal court rejected the applicants' arguments that, among other things, they were not guilty of stealing because transactions between Yukos production entities and trading companies which were the focus of the prosecution's allegations had been legal and valid; that the trial judge's taking of evidence had been one-sided; that they had been tried twice for the same offence; and that their prosecution had been politically motivated.

Three sets of supervisory review proceedings reduced their sentences further. Mr Khodorkovsky was pardoned in December 2013 while Mr Lebedev completed his sentence in January 2014.

Vladimir Putin, prime minister at the time of the second trial, made various public statements during the proceedings, referring to Mr Khodorkovsky and the Yukos case. Some current and former employees of the trial court also made allegations in the media about the judge's independence and impartiality, however, the investigative committee decided against beginning criminal proceedings.

The applicants raise various complaints about the conduct of their trial under Article 6 (right to a fair trial). Under Article 7 (no punishment without law), they complain that they were convicted for conduct that was not criminal and that their sentences were wrongfully calculated. Relying on

Article 8 (right to respect for private and family life), they submit that their family lives were adversely affected by their transfer from penal colonies to remand prisons.

Under Article 4 of Protocol No. 7 (right not to be tried or punished twice), they allege that they were tried twice for the same offence. The applicants also argue that there was a political motivation for their prosecution, trial and conviction, relying on Article 18 (limitation on use of restrictions on rights) in conjunction with other Articles of the Convention.

[Styazhkova v. Russia \(no. 14791/04\)](#)

The applicant, Lyubov Styazhkova, is a Russian national who was born in 1952 and lives in Ryazan (the Ryazan Region, Russia).

The case concerns her allegation that the official explanation of suicide for her son's death during his military service was not convincing.

The applicant's son was drafted for military service in 2001. He was based in a village, Borzoy, in the Chechen Republic from July 2002. He was found dead on 8 August 2002 in an entrenchment of his military base, with two gunshot wounds to his right temple and bruising on his body.

The military prosecutor's office immediately began an investigation, with a prosecutor carrying out an inspection of the body and the scene of the incident, and ordering a ballistics test and autopsy. He also questioned the Borzoy unit's personnel, and one of the applicant's son's superiors, Sergeant K., as well as another soldier, Private S., admitted that on the night of his death they had caught him sleeping on duty and had beaten him.

The authorities refused to bring criminal proceedings concerning the beatings in respect of Sergeant K., but Private S. was eventually prosecuted in October 2002 for incitement to suicide and a breach of the rules on relations between servicemen of equal rank. The criminal case against the private was, however, discontinued in August 2003 under an amnesty.

Relying in particular on Article 2 (right to life) and Article 3 (prohibition of inhuman or degrading treatment), Ms Styazhkova complains about her son's ill-treatment and death, submitting also that the investigation was neither thorough nor effective and did not look into any explanation for the death other than suicide.

[X and Others v. Russia \(nos. 78042/16 and 66158/14\)](#)

The case concerns two applications relating to allegations of malfunctioning of the justice system. In particular, three applicants complain about the disclosure of their identity in judicial decisions or documents that were made public in a rape case and a case concerning adoption. The applicants' complaints against the judges concerned were not examined on the merits by the domestic courts.

Relying on Article 6 § 1 (right to a fair hearing), the applicants complain of a breach of their right of access to a court in so far as domestic law fails, in their view, to provide for a right to compensation for damage caused by the malfunctioning of the justice system.

Relying on Article 8 (right to respect for private and family life), two applicants complain about the publication in full by the authorities, on the Internet, of a judicial decision containing their names and those of their adopted children, in breach of the confidentiality of the adoption process. Under Article 13 (right to an effective remedy), they allege that they had no effective remedy by which to obtain compensation for the damage sustained.

[Varoğlu Atik and Others v. Turkey \(no. 76061/14\)](#)

The applicants, İlkşen Varoğlu Atik, Hasan Belen and Burak Maviş, were born in 1969, 1973 and 1980 respectively. They live in Nicosia, in the "Turkish Republic of Northern Cyprus" (the "TRNC").

The case concerns the suspended fine imposed on the applicants for an assault, committed during a demonstration on a public highway, against police officers who were blocking their access to the Parliament of the “TRNC”. The events took place in 2009.

The applicants rely, in particular, on Article 11 (right to freedom of assembly).

Thursday 16 January 2020

[Kušić and Others v. Croatia \(no. 71667/17\)](#)

The applicants, Zdravka Kušić, Bojan Kušić, and Martina Kušić, are Serbian nationals who were born in 1958, 1987, and 1990 respectively and live in Kragujevac (Serbia).

The case concerns their complaint that the investigation into the killing of their relatives in Croatia has so far taken almost 30 years, without the authorities bringing their killers to justice.

The applicants’ relatives, N.K. and P.K, were found shot dead by the side of a road in Petrovo Polje (Croatia) on 6 February 1992. The police called an investigating judge as well as a deputy prosecutor and an inspection of the crime scene was carried out. After an autopsy established that N.K. and P.K. had died from gunshot wounds to the head and torso, the police filed a criminal complaint with the Sisak County State Attorney’s Office against unknown persons for murder.

A criminal investigation ensued and the police initially carried out numerous interviews, notably with two men who had been living with the Kušić family and neighbours who stated that N.K. and P.K. had been abducted by men in camouflage uniforms. The murders were classified as a war crime in 2006 and further interviews were carried out in late 2008 and the beginning of 2009 and then from 2016 to 2018.

The investigation was transferred to the Osijek authorities in 2010 and most recently, in March 2019, to the Zagreb authorities, but is to date still ongoing.

Relying in particular on Article 2 (right to life), the applicants complain that the investigation into the killing of their relatives has been ineffective, and also argue that they have no effective domestic remedy for their complaint.

[Magosso and Brindani v. Italy \(no. 59347/11\)](#)

The applicants, Renzo Magosso and Umberto Brindani, are two Italian nationals who were born in 1947 and 1958 and live in Milan. The first applicant was a journalist with the weekly magazine *Gente*, while the second was its publishing director. The case concerns the applicants’ conviction for defamation following the publication of an article concerning the murder of the journalist Walter Tobagi in 1980 by a terrorist group close to the “Red Brigades”.

On 28 May 1980 Mr Tobagi was killed by a group of left-wing extremists known as the “28th of March Brigade”. The group’s leader was arrested in late September 1980. He decided to cooperate with the investigation and made a confession. In June 1983 Bettino Craxi, the then Prime Minister, stated publicly that a few months before Mr Tobagi’s death the *carabinieri* had received information concerning a planned terrorist operation targeting the journalist.

On 17 June 2004 Mr Magosso wrote an article entitled “Tobagi could have been saved”, in which he reported on the statements made by D.C., a former brigadier with the anti-terrorist branch of the Milan *carabinieri*, who said that a few months before the killing he had received information from an informant concerning a possible planned attack on Mr Tobagi. Mr Magosso also quoted another former *carabinieri* officer, General N.B., as saying that he had been excluded from the investigative activities of the Milan *carabinieri*.

Following a complaint lodged by some individuals named in the article, Mr Magosso and Mr Brindani were committed for trial in the Monza District Court on charges of defamation through the medium of the press. The former brigadier D.C. was prosecuted in separate proceedings and convicted at first instance. On 20 September 2007 the District Court found the applicants guilty of defamation and sentenced them to fines of 1,000 euros (EUR) and EUR 300 respectively. The court ordered the applicants jointly to pay the costs of the proceedings and made an order for publication of an extract from the judgment in the magazine *Gente* and in the daily newspaper *Corriere della Sera*. The applicants were also ordered to pay EUR 120,000 and EUR 90,000 for non-pecuniary damage to the two people referred to in the article, and EUR 20,000 to cover the latter's procedural costs. The applicants appealed and requested that their case be joined to the proceedings against D.C. The Court of Appeal dismissed the appeals by the applicants and D.C. and upheld the first-instance decision. The applicants lodged an appeal on points of law. The Court of Cassation dismissed the appeal, upheld the order for the applicants to pay an interim amount of EUR 120,000 and ordered them, jointly with D.C., to pay EUR 7,000 to the civil parties for costs and expenses.

Relying on Article 10 (freedom of expression), the applicants complain of interference with their right to freedom of expression.

[Torresi v. Italy \(no. 68957/16\)](#)

The applicant, Cristian Torresi, is an Italian national who was born in 1985 and lives in Tsuen Wan (Hong Kong). The case concerns his being unable to obtain a passport for over six months because of his failure to make maintenance payments which he owed.

On 14 March 2011 Mr Torresi married M.T. in Italy. The couple had two daughters. On an unspecified date they separated. On 11 September 2015 the Ascoli Piceno chief of police revoked Mr Torresi's passport owing to his wife's refusal to give her consent for its renewal. In a decision of 5 November 2015 the guardianship judge held that M.T.'s refusal was justified as it had been proven that Mr Torresi was evading his responsibilities towards his children, was preventing his wife from returning to her own family in Russia and had withheld his consent to the issuing of valid travel papers for his daughters in order to prevent their mother from taking them with her.

The guardianship judge further held that the father's virtually permanent move to China was incompatible with the interests of his minor daughters as the recovery of maintenance payments outside Europe was very difficult in practice.

On 24 May 2016 Mr Torresi applied for a passport to travel to China, both in order to work there and to join his new Chinese girlfriend who was due to give birth to their first child, whom he wished to recognise as his own. In view of the baby's right to be recognised, the judge authorised the issuing of the passport on 25 May 2016. M.T. sought to have that decision annulled. On 17 May 2017 the guardianship judge granted her request, observing that Mr Torresi paid only a small proportion of the maintenance payments owed to his daughters and that they and their mother had had to leave their apartment because they could not afford to live there.

On 30 November 2017 the parties reached agreement on the financial issues and the issue of the passport; they each gave the consent required for the issuing of the papers and withdrew from the proceedings before the guardianship judge. The Fermo District Court pronounced their judicial separation by mutual consent on 13 December 2017.

Relying on Article 2 of Protocol No. 4 (freedom of movement) and Article 8 (right to private and family life), the applicant complains of the authorities' refusal to issue him with a passport.

[Maddalozzo v. Switzerland \(no. 19338/18\)](#)

The applicant, Guiliano Maddalozzo, is a French national who was born in 1954 and is being held in Bellevue Prison in Gorgier (Canton of Neuchâtel).

The case concerns an order for continued psychiatric detention after a previous prison sentence.

On 3 November 1998 the Assize Court of the Canton of Geneva found the applicant guilty of attempted rape accompanied by cruelty and while barred from Swiss territory. It sentenced him to five years' imprisonment, ordered that the sentence be suspended and replaced by psychiatric detention and ordered psychiatric treatment. The judgment was upheld by the Federal Court.

On 20 June 2011 the applicant applied for a review of his detention with a view to conditional release.

In a report of 15 November 2012 a doctor diagnosed the applicant with a paranoid personality disorder including elements of narcissistic perversion and a psychopathic component, with an organic mental disorder caused by an injury, a cerebral malfunction or a physical condition, and with immature psycho-sexual development. The expert noted that there were still serious reasons to fear that the applicant would commit further offences causing grave harm to other persons' physical, psychological or sexual integrity. He stressed that the applicant's psychiatric detention continued to be necessary and could not be replaced by an institutional therapeutic measure, still less by outpatient treatment.

On 22 April 2013 the post-sentencing court of the Canton of Geneva dismissed the applicant's application and ordered his continued detention. That judgment was upheld at cantonal and Federal level in 2013.

On 31 May 2016 the Court declared an application lodged by the applicant on 16 June 2014 inadmissible for failure to exhaust domestic remedies.

In January 2015 the Geneva public prosecutor's office also found that the applicant's psychiatric detention should continue.

On 5 March 2015 the post-sentencing court ordered the applicant's continued detention.

On 30 September 2015 the applicant was transferred to Bellevue Prison, a high-security facility.

On 8 December 2016 the post-sentencing court ordered the applicant's continued psychiatric detention, basing its decision on the expert report of 15 November 2012 and on the views expressed in the file, since no event had occurred in the meantime capable of fundamentally calling that evidence into question.

On 19 October 2017 the Federal Court dismissed an appeal by the applicant.

Relying on Article 5 § 1 (right to liberty and security), the applicant complains of the lack of a sufficient causal link between his initial conviction and the order of 8 December 2016 for his continued psychiatric detention. He also complains that the regime under which he is serving his sentence, in prison, is inappropriate.

Relying on Article 3 (prohibition of inhuman or degrading treatment), he complains of the imposition of a custodial sentence without any prospect of release and of a lack of psychotherapeutic treatment.

[Yam v. the United Kingdom \(no. 31295/11\)](#)

The applicant, Wang Yam, is a United Kingdom national who was born in 1961.

The case concerns his conviction for murder following a trial which was held partly *in camera*.

In 2006 the applicant was charged with murder and a number of other offences linked to alleged theft of the victim's mail. At the start of his trial in January 2008 the judge ordered that part of his defence evidence be heard *in camera* in the interests of national security and to protect the identity of a witness or other person. The defence appealed unsuccessfully against that order.

At trial, the applicant's evidence, together with the evidence of prosecution witnesses led solely to rebut his defence, was heard *in camera*. He was subsequently convicted of murder.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), the applicant complains that the hearing of evidence *in camera* led to his trial being unfair. He also makes a number of other complaints under Article 6 § 1 about the criminal proceedings against him.

He further alleges that the State failed to comply with its obligations under Article 34 (right of individual petition) by refusing to allow disclosure of the *in camera* material in the proceedings before this Court.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 14 January 2020

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Banzhayev v. Russia	21129/09
Bashin and Chekunov v. Russia	44015/07
Gadayev and Others v. Russia	51119/15
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Christian Religious Organization of Jehovah'S Witnesses v. Armenia	25103/10
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Fűri and Others v. Hungary	62237/14
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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.